

HOUSE No. 1534

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to a commission to study access to emotional support animals in residential housing.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/17/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/30/2025</i>

HOUSE No. 1534

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 1534) of Bradley H. Jones, Jr., and others for an investigation by a special commission (including members of the General Court) relative to access to emotional support animals in residential housing. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to a commission to study access to emotional support animals in residential housing.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) There shall be a special legislative commission established pursuant to
2 section 2A of chapter 4 of the General Laws to study and report on the use and training of
3 service animals in comparison to emotional support animals and the consequences to tenants and
4 owners of the buildings in which they reside within the Commonwealth. The commission shall
5 consist of 17 members: 2 of whom shall be the chairs of the joint committee on housing or their
6 designees, who shall serve as co-chairs; 2 shall also be the chairs of the joint committee on the
7 judiciary or their designees; 1 of whom shall be appointed by the speaker of the house of
8 representatives; 1 of whom shall be appointed by the senate president; 1 of whom shall be
9 appointed by the house minority leader; 1 of whom shall be appointed by the senate minority
10 leader; 1 of whom shall be the governor or their designee; 1 of whom shall be the attorney
11 general or their designee; 1 of whom shall be the director of the Massachusetts office on

disability or their designee; 1 of whom shall be the executive director of the Massachusetts commission against discrimination or their designee; 1 of whom shall be the executive director of the municipal police training committee established pursuant to section 116 of chapter 6 of the General Laws or their designee; 1 of whom shall be the executive director of the mental health legal advisors committee established pursuant to section 34E of chapter 221 of the General Laws or their designee; 1 of whom shall be the president and chief executive officer of the Greater Boston Real Estate Board or their designee; and 1 member who shall be appointed by the governor, 1 of whom shall be a professional service dog organization headquartered in the commonwealth accredited by Assistance Dogs International, specializing in public advocacy and education and the training of service dogs that has been in existence for not less than 46 years and has placed not less than 900 service dogs in the commonwealth, 1 of whom shall be from the Citizens Housing and Planning Association, 1 of whom shall be a tenant residing in the Commonwealth appointed by the Greater Boston Legal Services and 1 of whom shall be a person with a disability who resides in the commonwealth who is an employee of a service dog training team in which the service dog has received its training from an Assistance Dogs International accredited service dog Organization, and one of whom shall be from an organization advocating for the training of emotional support animals.

(b) The study shall include, but shall not be limited to: (i) reviewing current federal, state and local laws and procedures governing the use of emotional support animals; (ii) examining the use and benefit of emotional support by individuals with disabilities; (iii) investigating the presence, prevalence and impact of fraud, misrepresentation and other misuse of emotional support animals and any resulting damage or harm they have caused to property or individuals, including the prevalence of online, for-profit, verification sources; (iv) researching laws and

practices in other jurisdictions with the objective to deter the misuse of emotional support animals; and (v) identifying training and educational opportunities aimed at increasing understanding of laws governing the use of emotional support animals among public officials, law enforcement, business owners and members of the public. The commission shall report on: (A) recommending changes to laws governing the use of emotional support, if any, including the definition of an “emotional support animal” and whether to introduce legislation to change the manner and methods by which they are verified, approved and trained; and (B) determining the feasibility of certifying, registering or licensing of emotional support animals.

(c) The commission shall file its report not later than April 1, 2027, with the clerks of the house of representatives and the senate, the chairs of the house and senate committees on ways and means and the chairs of the joint committee on housing.